Superior Court of the State of California
County of Orange

Tentative Rulings
Law and Motion Calendar
Department C23
Honorable David J. Hesseltine

Hearing Date and Time: July 9, 2026, at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: **Civil Court Reporter Pooling**. For additional information regarding court reporter availability, please visit the court's website at **Court Reporter Interpreter Services**.

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 12:00 noon on the date of the afternoon hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case. **The court will not entertain a request to continue a hearing or any document filed after the court has posted a tentative ruling.**

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5223. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C23 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C23 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at

https://www.occourts.org/media-relations/civil.html before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at **https://www.occourts.org/media-relations/aci.html**. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at **https://www.occourts.org/media-relations/aci.html**. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5223 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

#	Case Name Case Number	Tentative
1.	***Pasche vs. Ox Car Care, Inc.*** *2026-01548650*	Before the court is the unopposed petition filed by petitioner John Pasche (Petitioner) to confirm the arbitration award issued on February 4, 2026, in the amount of $53,663.50 against respondent Ox Car Care, Inc. dba Ox Warranty Group (Respondent). As more fully set forth below, the petition is **GRANTED**. The petition seeks to confirm the Final Arbitrator's Consent Award entered by Michael H. Leb of American Arbitration Association's Employment Arbitration Tribunal on February 4, 2026. (Copy attached as Attachment 8(c) to Petition.) Code of Civil Procedure section 1290.2 provides, "A petition under this title shall be heard in a summary way in the manner and upon the notice provided by law for the making and hearing of motions, except that not less than 10 days' notice of the date set for the hearing on the petition shall be given." Once a party to an arbitration files a petition to confirm, correct, or vacate an award, a response must be filed and served within 10 days after service of the petition, unless a judge extends, or both parties agree to extend, this deadline. (Code Civ. Proc., § 1290.6.) If a response is not filed by the deadline, the allegations of the petition are deemed admitted by the respondent. (Code Civ. Proc., § 1290.) Here, there has been no response to the petition

		by Respondent. Further, the court finds the Petition complies with the requirements of Code of Civil Procedure section 1285.4. Accordingly, the arbitrator's Award in favor of Petitioner is **CONFIRMED**. Petitioner's request for an additional award of interest or attorney's fees beyond the amounts stated in the award is **DENIED WITHOUT PREJUDICE** because Petitioner has failed to submit calculations or evidence supporting such. (See *Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 224 ["In law and motion practice, factual evidence is supplied to the court by way of declarations"].) Indeed, the petition is not verified and there is no declaration submitted in support of it nor are there any calculations establishing the amount of interest sought. Petitioner's counsel is ordered to give notice of this ruling.
2.	***Lopez, Bark & Schulz LLP vs. Watson*** *2025-01537149*	Before the court is (1) the continued hearing on the petition to confirm arbitration award filed by petitioner Lopez, Bark & Schulz LLP (Petitioner), and (2) Petitioner's ex parte application for order permitting service of petition via electronic mail and/or other electronic technology pursuant to Code of Civil Procedure section 413.30. No tentative on the merits will be posted. The will hear from counsel at the hearing.
3.	***Petition of Greenberg*** *2026-01559277*	Before the court is the petition to compel inspection of corporate records filed by petitioner David Greenberg (Petitioner). As set forth more fully below, the hearing is **CONTINUED TO THURSDAY, SEPTEMBER 24, 2026, AT 2:00 P.M., IN DEPARTMENT C23**. A stockholder's right to inspect the corporate books may be enforced by a writ of mandate. (*Webster v. Barlett Estate Co.* (1917) 35 Cal.App. 283, 285; see also *Most v. First Nat. Bank of San Diego* (1966) 246 Cal.App.2d 425; *Tritek Telecom, Inc. v. Superior Court* (2009) 169 Cal.App.4th 1385.) A petition for writ of mandate must be served on respondent (and real parties in interest, if any) in the manner required for service of a summons and complaint, i.e., pursuant to Code of Civil Procedure section 415.10 et. seq. (*Board of Supervisors v. Superior Court* (1994) 23 Cal.App.4th 830, 839.) Here, Petitioner has not filed any proof of service showing timely and properly service of the petition and notice of hearing on respondent Plastoker, Inc. (Respondent) Based on the foregoing, the hearing on the petition is **CONTINUED** as stated above. Petitioner is ordered to

		timely and properly serve Respondent and to file proof of such service at least five court days before the continued hearing date. Petitioner is ordered to give notice of this ruling.
4.	***The City of Dana Point vs. SND, L.P.*** *2026-01570223*	**CONTINUED TO SEPTEMBER 17, 2026, AT 2:00 P.M.**, pursuant to stipulation and order entered on July 6, 2026.
5.	***McMillan vs. Exir Co., Inc.*** *2012-00564599*	Before the court is the motion of defendant Abraham N. Mourshaki (Defendant) to deposit funds with the court and for entry of satisfaction of judgment. The court will not post a tentative ruling on the merits of this motion. Instead, both Defendant and plaintiff Richard V. McMillan (Plaintiff) are ordered to appear for the hearing to discuss the motion and resolution of the parties' dispute regarding the amount required to fully satisfy the judgment. Remote appearances are acceptable for purposes of this hearing.
6.	***Kaiser Foundation Health Plan vs. Sharp Memorial Hospital*** *2026-01566981*	Before the court is the motion to seal portions of the opposition brief and supporting documents respondents Sharp Memorial Hospital, Sharp Coronado Hospital & Healthcare Center, Sharp Chula Vista Medical Center, and Grossmont Hospital Corporation dba Sharp Grossmont Hospital (collectively, Respondents) filed in response to the petition to confirm arbitration award filed by Kaiser Foundation Health Plan (Petitioner). As more fully set forth below, the hearing is **CONTINUED TO THURSDAY, AUGUST 13, 2026, AT 2:00 P.M., IN DEPARTMENT C23**, for Respondents to provide unredacted copies of the documents sought to be sealed, potentially narrow the request to seal, and potentially make a more detailed and specific showing to support the sealing request. Pursuant to California Rules of Court, rules 2.550 and 2.551, Respondents request the court seal portions of the opposition to the Petitioner's petition to confirm the arbitration award, portions of the declaration filed in support of the opposition, and the entirety of many of the exhibits attached to the supporting declaration. Under the Rules of Court, the party moving to seal any documents must lodge unredacted copies of those documents. (Rules Ct., rule 2.551, subdivisions (b), (d).) With electronic filing, that is customarily done by filing a public and nonpublic version of each document to be sealed.

		Although Respondents' papers state unredacted copies have been lodged, the court is unable locate such documents in either the register of actions or any physical copies submitted to the courtroom. The court is unable to rule on the merits of the motion without reviewing the unredacted version of the documents to determine whether the information is worthy of sealing and whether the sealing request is narrowly tailored. Indeed, rule 2.550 requires the court to make specific factual findings before ordering any documents sealed and the court cannot make those findings without reviewing the unredacted version of the documents. The court also is concerned the request to seal may not be as narrowly tailored as it should be to comply with the Rules of Court. For example, the motion seeks to redact the entirety of all but one of the exhibits submitted in support of the motion. Just because a document may contain some information worthy of sealing does not mean the entire document may be sealed. Again, the Rules of Court require the sealing to be narrowly tailored. However, without reviewing the unredacted version of the documents, the court cannot make the necessary determination. Moreover, the factual showing in support of the motion appears to be rather conclusory and nonspecific, and the citation to authority to support the necessity of sealing also appears to be rather general. The court has seen the additional declarations Petitioner submitted in support of Respondent's motion. Those declarations do provide more specificity, but the court is unable to determine if the information they provide is sufficient without reviewing the documents. The court notes it is tasked to act as a gatekeeper and to protect the public's presumptive right to access to the court's records. The court may not act as a rubber stamp, and neither the lack of any opposition nor the stipulation of the parties is sufficient to support sealing. As stated above, the court is required to make very specific findings before ordering even a small portion of any document sealed. The court takes this responsibility very seriously. Based on the foregoing, the hearing on the motion is **CONTINUED** as stated above. Respondents are ordered to file unredacted, nonpublic versions of each document they wish to be sealed. Respondents also may want to consider narrowing their sealing request and submitting supplemental evidence and authority to support the request. Respondent is encouraged to clearly and

		specifically identify each document they wish to seal by specifically where it can be found. For example, Respondent's opposition located at ROA number ___, or Exhibit A to the Tooch Declaration found at ROA number ___. *Any and all supplemental filings by Respondents must be filed and served no later than July 30, 2026*. Finally, the court notes neither side has yet reserved or otherwise obtained a hearing date on the petition to confirm the arbitration award or the opposition/request to vacate. Respondents' counsel is ordered to give notice of this ruling.
7	***Raz Yaron vs. Sierra S. Conley*** *2026-01546480*	Before the court is a motion for assignment order filed by judgment creditor Raz Yaron (Creditor) on April 28, 2026, against judgment debtor Sierra S. Conley (Debtor). Specifically, Creditor seeks an order instructing Debtor "to assign to [Creditor] any and all salaries, royalties, commissions and/or monies generated from Sierra Sue, LLC." For the reasons set forth below, the motion is **DENIED WITHOUT PREJUDICE**. Under Code of Civil Procedure section 708.510, "upon application of the judgment creditor on noticed motion, the court may order the judgment debtor to assign to the judgment creditor . . . all or part of a right to payment due or to become due, whether or not the right is conditioned on future developments . . . ." (Code Civ. Proc., § 708.510, subd. (a).) The showing needed to obtain an assignment order is as follows: "Detailed evidentiary support for the request under § 708.510 is not required, but a judgment creditor is required to 'describe [the sources of the right to payment] with sufficient detail so that [d]efendants can file a claim of exemption or other opposition.' [Citation.] '[Section] 708.510(a) refers to a "payment due or to become due," which suggests some degree of concreteness to the expected payment is required.' [Citation.] 'Certainly, there needs to be more than just speculation before the remedy of an assignment order can be provided.' [Citation.] To ensure that an assignment is both warranted and permissible under CCP § 708.510(a), courts require that a party seeking an assignment order identify the intended sources that are obligated to make payments to the judgment debtor. [Citation.]" (*Linley Investments v. Jamgotchian* (C.D. Cal. 2019) 2019 WL 1429507, at p. *3; see also *Legal Additions LLC v. Kowalski* (N.D. Cal. 2011) 2011 WL 3156724, at p. *2; *UMG Recordings, Inc. v. BCD*

		Music Grp., Inc. (C.D. Cal. 2009) 2009 WL 2213678; *Penson & Company, LLC v. Cloudstyle Store* (N.D. Cal. 2023) 2023 WL 8242123, at p. *1.) Here, Creditor specified what right to payment Debtor is entitled to receive from Sierra Sue, LLC, but Creditor merely speculates Debtor "is receiving salaries, royalties, commissions and/or monies" from Sierra Sue, LLC. The only evidence produced by Creditor is Debtor being listed as a "manager" or "member" of Sierra Sue, LLC on the Statement of Information filed with the California Secretary of State. This evidence does not show Debtor is entitled to "salaries, royalties, commission and/or monies." At present, there is nothing more than speculation as to Debtor's right to payment(s) without any degree of concreteness. To the extent Creditor seeks "any and all salaries," Debtor's wages cannot be subject to a section 708.510 assignment order. The Wage Garnishment Law, Code of Civil Procedure section 706.020, et seq., is the exclusive judicial method of compelling an employer to withhold an employee's earnings to satisfy a judgment. (Code Civ. Proc., § 706.020; *California State Employees' Assn. v. State of California* (1988) 198 Cal.App.3d 374, 377.) To the extent Creditor seeks to reach Debtor's interests in the LLC and distributions from the LLC, the relevant code provision is Code of Civil Procedure section 708.310 – not 708.510. Creditor did not file a motion for a charging order pursuant to Code of Civil Procedure section 708.310. The court generally cannot grant different relief, or relief on different grounds, than stated in the notice of motion. (*People v. American Sur. Ins. Co.* (1999) 75 Cal.App.4th 719, 726; *Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1124.) Creditor failed to show an assignment order is warranted and permissible under Code of Civil Procedure section 708.510. Accordingly, the motion is **DENIED WITHOUT PREJUDICE**. The court notes there is an upcoming judgment debtor exam that may provide sufficient information to make the necessary showing. Moreover, other forms of discovery also are available. Creditor's counsel is ordered to give notice of this ruling.
8.	***Merchant Capital Source,***	Before the court is the renewed motion of plaintiff and judgment creditor Merchant Capital Source, LLC (Creditor) for order enforcing JP Morgan Chase Bank, N.A.'s statutory

	LLC vs. Gorilla Cords, LLC *2016-00874703*	duty after levy and compelling delivery of levied funds to levying officer. As more fully set forth below, the motion is **DENIED**. This is the third motion Creditor has brought seeking to compel non-party JP Morgan Chase Bank (Chase) to release funds that allegedly are being held under a notice of levy served on November 8, 2024, regarding account ending 7593. The court denied each of the previous motions due to the failure to serve the judgment debtors or Chase, the reliance on inapplicable authority, and the lack of an adequate evidentiary record to support the requested relief. The court hereby incorporates its October 23, 2025 and May 7, 2026 Minute Orders by reference. In the current motion, Creditor states it has corrected these deficiencies. Indeed, it represents this motion and supporting papers have been served on all judgment debtors and Chase. The court, however, is unable to find any proof of service in its file demonstrating this motion was served on anyone. As such, the service defect that has plagued all prior motions continues. The court further notes, the notice of ruling Creditor served to comply with the court's prior order was not served on all judgment debtors. Specifically, the proof of service attached to that notice states it was served on Chase, Gorilla Cords, and Phuc Le. The proof of service, however, does not identify Jessica Vo as one of the judgment debtors served with the notice. In the current motion, Creditor disclaims any reliance on Code of Civil Procedure section 699.040, but instead now identifies a number of other code sections in support of this motion, including Code of Civil Procedure sections 684.115, 700.140, 700.160, 701.010, 701.020, 701.030, and 703.520. These code sections potentially could provide a basis for granting Creditor some relief (if the motion had been properly served), but Creditor's evidentiary showing continues to be lacking and the specific relief sought does not appear to be authorized. The chronology of events has been presented in the court's prior rulings and will not be restated here. The court, however, will acknowledge the new information Creditor has provided. This includes what appears to potentially be an April 14, 2025 garnishee's memorandum from Chase discussing a writ of execution it received for accounts held by Phuc Le that states the "Account(s) [are] Closed." The April 26, 2025 letter from Chase Creditor previously presented says it relates to a writ of execution against

		Gorilla Cords, Gorilla Cords, LLC and specifically reference account ending in 7593. Creditor also represents, On November 13, 2025, Chase told its counsel the hold it placed on the $41,026.89 is indefinite until Chase hears from the court of the sheriff. As with the prior motions, Creditor has not shown a court order for release of funds from the subject account is necessary. Again, the letter (Letter) from Chase states not that it is refusing a levy, but that it will not produce the name on the account without a subpoena. (Velen Decl., Ex. 2.) Creditor has not explained why this statement was made in the letter as the writ of execution does not request the account holder's name. (Velen Decl., Ex. 1.) The garnishee's memorandum Creditor has now produced appears to have been sent prior to the Letter, was not previously produced to the court, and states the account(s) to which it relates was/were closed. It is unclear why the Letter only references judgment debtor "Gorilla Cords, Gorilla Cords LLC," but the garnishee memo only refers to debtor Phuc Le. It also is unclear what if any contact Creditor has had with Chase since November 2025. Moreover, a court order under Code of Civil Procedure section 700.160 is only necessary when a bank account stands in the name of someone other than the judgment debtor. (*Grover v. Bay View Bank* (2001) 87 Cal.App.4th 452, 456–57.) When the account is held under the name of a judgment debtor alone or together with third persons, an order of the court is unnecessary. (Code Civ. Proc., § 700.160, subd. (b)(1).) Of course, this would require evidence of the names on the account ending 7593, which has never been presented, and Creditor has decided not to serve the subpoena Chase invited to obtain that information. If a third party such as Chase is truly refusing or failing to comply with a valid writ of execution and levy, it appears the proper motion is a motion under section 701.020 to hold the third party liable or force them to show good cause for not complying. (See, e.g., *Grayson Services, Inc. v. Wells Fargo Bank* (2011) 199 Cal.App.4th 563, 575-576; *National Fin'l Lending, LLC v. Superior Court* (2013) 222 Cal.App.4th 262, 272.) Of course, any such motion would need to be properly served on Chase, which would be personal service. Based on the foregoing, the motion is again **DENIED**.

		Creditor's counsel is ordered to file and serve notice of this ruling on ALL judgment debtors and Chase within five court days of the hearing on this motion.
9.	***Santos vs. Crenshaw Manufacturing Inc.*** *2025-01488879*	Before the court is the motion of Waleed Mansour (Mansour) to set aside void abstract of judgment, release judgment lien, and request for attorney fees and costs. As more fully set forth below, the motion is **GRANTED** as to the request to set aside the abstract of judgment and release judgment lien, but the motion is **DENIED** as to the request for attorney fees and costs. On or about July 14, 2023, judgment creditor Marivel Santos (Santos) prevailed against judgment debtor Crenshaw Manufacturing Inc. (Crenshaw) before the Workers' Compensation Appeals Board and obtained an award against Crenshaw in the amount of $194,386.55 plus an award of attorney fees to Santos's counsel in the amount of $29,158. That award was entered as a judgment in favor of Santos and against Crenshaw on June 3, 2025. On June 18, 2025, Santos filed an abstract of judgment against Crenshaw based on the judgment. That abstract, however, also listed Mansour as an additional judgment debtor even though neither the Workers' Compensation Appeal Board award nor the judgment was against Mansour. On or about March 12, 2026, Mansour's attorney sent Santos's attorney a letter requesting Santos recall the abstract of judgment because it erroneously included Mansour as a judgment debtor when he was not named in either the award or the judgment. Santos's counsel refused, and instead, one week later, filed a motion to add Mansour as a judgment debtor. On May 28, 2026, the court denied that motion because Santos failed to make a sufficient evidentiary showing to support amending the judgment. "An abstract of judgment that asserts the existence of a judgment of a certain monetary amount when there is no such judgment does not comply with Code of Civil Procedure section 674. An abstract of judgment obtained fraudulently and not in compliance with Code of Civil Procedure section 674 because it does not accurately reflect '[t]he amount of the judgment,' may be cancelled or otherwise voided by a court. (*Id*., subd. (a)(5); see *Sanai v. Saltz* (2009) 170 Cal.App.4th 746, 759, fn. 7 [88 Cal.Rptr.3d 673] [an abstract obtained by a plaintiff was 'recalled and quashed' where court found that the

		plaintiff had '"fraudulently obtained"' an abstract of judgment for a monetary amount that had not been awarded and '"wrongfully caused this Abstract of Judgment to be recorded with the Los Angeles County Recorder's Office"']; see also *In re Michael S.* (2007) 147 Cal.App.4th 1443, 1456, 54 Cal.Rptr.3d 920 [in dicta, addressing an abstract obtained by a county that 'should never have been applied for or issued in the first place in any amount greater than $25,000 because it was that figure which was the true "total amount of judgment" entered against [a juvenile's mother] as "judgment debtor"' and stating that 'an abstract of judgment cannot indicate a liability on the part of a judgment debtor in excess of the judgment creating that liability in the first place' (italics omitted)].)" (*Weeden v. Hoffman* (2021) 70 Cal.App.5th 269, 295 [footnote omitted].) Here, the abstract of judgment does not comply with the requirement of Code of Civil Procedure section 674 because it falsely represents the judgment in the action (and the award of the Workers' Compensation Appeals Board) was entered against Mansour in addition to Crenshaw. That is false on the face of the record and renders the abstract void and subject to being recalled and quashed. Santos argues the court should continue this motion until after the court hears his renewed motion to amend the judgment to add Mansour and the Workers' Compensation Appeals Board hearing his petition to add Mansour to the award. Santos further argues the inclusion of Mansour is merely a technicality and the court should consider the facts of the underlying award against Crenshaw. He asks the court to consider this motion in the larger context of his efforts to enforce the award and judgment. All of that, however, is irrelevant. Regardless of the underlying facts and the greater context, Santos had no right to file and record an abstract of judgment against Mansour—i.e., a person who is not a judgment debtor. It does not matter that Santos believes he has a basis to add Mansour as a judgment debtor. He has no right or ability to file and record an abstract of judgment against Mansour unless and until Mansour is made a judgment debtor. Indeed, it is highly improper to file and record an abstract of judgment against a person based on the hope and expectation the person will be added to the judgment in the future. Moreover, there is no basis for Santos to claim this was a mistake or error. Indeed, Santos did nothing about the improper abstract of judgment for many months until Mansour's counsel pointed out its impropriety. Rather than

withdraw the abstract, however, Santos doubled down and hastily prepared and filed his prior (unsuccessful) motion to amend the judgment.

Accordingly, the motion is **GRANTED** as to the request for order setting aside the void abstract of judgment and releasing judgment lien. This motion is granted under Code of Civil Procedure section 473, subdivision (d), on the ground the abstract of judgment is void and it never should have been filed or recorded against Mansour.

Although Code of Civil Procedure section 697.410 appears generally to be designed to address improper abstracts of judgment and authorizes a motion to remove an improper abstract, the language of that statute specifically limits it to situations in which "a recorded abstract of a money judgment . . . appears to create a judgment lien on real property of a person who is not the judgment debtor because the name of the property owner is **the same as or similar to** that of the judgment debtor." (Code Civ. Proc., § 697.410, subd. (a) [underlining and bold font added].) Here, Mansour is named in the abstract of judgment—albeit erroneously—and the lien it created was not due to his name being the same as or similar to the proper judgment debtor. As such, it appears that code section does not apply in these circumstances.

For that reason, the request for attorney fees and costs under section 697.410 is **DENIED**. The request for attorney fees under Code of Civil Procedure section 128.5 also is **DENIED** as procedurally improper. That section requires a motion for sanctions under that section "be made separately from other motions or requests." (Code Civ. Proc., § 128.5, subd. (f)(1)(A).)

Citing *Changsha Metro Group Co., Ltd. v. Xufeng* (2020) 57 Cal.App.5th 1, 23, Mansour argues section 128.5 simply requires notice and an opportunity to be heard, not a separate motion. The statutory language, however, clearly requires a separate motion and the *Changsha Metro Group* case does not apply here.

That case addressed a request for sanctions for a frivolous anti-SLAPP motion. The anti-SLAPP statute (Code of Civil Procedure section 425.16) incorporates section 128.5 in authorizes sanctions for a frivolous anti-SLAPP motion: "If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion, pursuant to Section 128.5." (Code Civ. Prov., § 425.16, subd. (c)(1).) The

		Changsha Metro Group court conclude, in incorporating the standards of section 128.5, section 425.16 did not incorporate the requirements set forth in 128.5, subdivision (f), because they were impracticable given the strict and short deadlines section 425.16 otherwise imposes: "Due to the lack of practical insight into how one could make section 128.5, subdivision (f) function in an anti-SLAPP context and due to a lack of meaningful analysis of legislative history, we find defendants' criticism to be unpersuasive. Accordingly, as set forth ante, the proper procedure for a trial court to follow in regard to a request for attorney's fees related to a frivolous anti-SLAPP motion is the procedure set forth in subdivisions (a) and (c)." (*Changsha Metro Group*, *supra*, 57 Cal.App.5th at p. 23.) Accordingly, *Changsha Metro Group*'s holding is limited to the anti-SLAPP context and Mansour has not shown any reasons why the requirement of section 128.5, subdivision (f) should not apply in the context of this case. The denial of the sanctions and fees request is without prejudice to any future motion or other request, and this ruling does not foreclosure any claim for damages that may arise out of the improper filing and recording of the abstract of judgment. To be clear, the court also expresses no opinion on the propriety or merits of Santos's renewed motion to amend or his pending petition before the Workers' Compensation Appeals Board. This ruling vacating and quashing the abstract of judgment is based on Santos's improper filing and recording of the abstract before Mansour is added as a judgment debtor; it does not express any opinion as to whether Mansour can or should be added as an additional judgment debtor in the future. This ruling also is without prejudice to Santos submitting a new abstract of judgment consistent with the current judgment in this action. Mansour is ordered to give notice of this ruling and to submit a proposed order, suitable for recordation, releasing any lien created by the abstract of judgment and vacating the entry of the abstract by the court.
10.	***Hoang vs. South Longspur Trust, Dated 6/6/2018*** *2018-01021633*	Before the court is the motion of defendant South Longspur Trust Dated 6/6/2018 (Longspur) for monetary sanctions pursuant to Code of Civil Procedure section 128.7. The motion seeks sanctions against plaintiff Nam Neil Hoang (Plaintiff) based on a motion to vacate and a motion for

reconsideration he filed in January 2026. As more fully set forth below, the motion is **GRANTED**.

“‘“Trial courts, of course, are empowered to inquire into the bona fides of private lawsuits, . . . Code of Civil Procedure section 128.7 provides that the filing of a pleading certifies that, to the attorney or unrepresented party's ‘knowledge, information, and belief, formed after an inquiry reasonable under the circumstances,’ the pleading is not being presented ‘primarily for an improper purpose,’ the claims, defenses and other legal contentions therein are ‘warranted,’ and the allegations and other factual contentions ‘have evidentiary support.’ (*Id*., subd. (b).) If these standards are violated, the court can impose an appropriate sanction sufficient to deter future misconduct, including a monetary sanction.” [Citations.] “The purpose of section 128.7 is to deter frivolous filings.”’” (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 421.)

Whether the certificate of section 128.7 is violated is tested objectively—i.e., whether the paper filed is frivolous, legally unreasonable or without factual foundation. “The actual belief standard . . . requires a well-founded belief. We measure the truth-finding inquiry’s reasonableness under an objective standard, and apply this standard both to attorneys and to their clients.” (*Bockrath v. Aldrich Chemical Co., Inc.* (1999) 21 Cal.4th 71, 82; *Marriage of Sahafzadeh-Taeb & Taeb* (2019) 39 Cal.App.5th 124, 135, fn. 6; *Peake v. Underwood* (2014) 227 Cal.App.4th 428, 440 [“A claim is objectively unreasonable if any reasonable attorney would agree that [it] is totally and completely without merit”].)

“A claim is factually frivolous if it is not well grounded in fact and it is legally frivolous if it is not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law.” (*McCluskey v. Henry* (2020) 56 Cal.App.5th 1197, 1205 [internal quotes omitted].) “A ‘nonfrivolous’ argument presupposes reasonable research and investigation. Again, this is an objective standard and bars any excuse for patently frivolous arguments. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group 2026) at ¶9:1177, citing Committee Notes on 1993 Amendments to Federal Rules of Civil Procedure (1993) 146 FRD 401, 587 [interpreting FRCP 11].) Under section 128.7, “it is not necessary to show the party acted with an improper motive or subjective bad faith. But the fact that a party does not actually believe in the merits of the claim is relevant to the

		issue whether sanctions are warranted in the particular case." (*Peake v. Underwood*, *supra*, 227 Cal.App.4th at p. 449.) Here, on October 30, 2022, the Court of Appeal issued its opinion affirming the judgments on both the third amend complaint and the cross-complaint in this action, finding Plaintiff failed to state any valid challenge to the judgments. The Court of Appeal issued its remittitur on January 15, 2026. On January 23, 2026, Plaintiff filed his motions to vacate the judgments the Court of Appeal had just affirmed and to reconsider various rulings that lead to the judgments. On April 9, 2026, the court denied both motions, rejecting Plaintiff's challenges, explaining this court lacked authority to vacate a judgment the Court of Appeal affirmed, and stating Plaintiff failed to comply with any of the requirements for or stated any basis for reconsideration. (See April 9, 2026 Minute Order, which is incorporated herein by reference.) The court finds Plaintiff has failed to establish any nonfrivolous argument to justify his motion to vacate and motion for reconsideration. As explained in the ruling denying those motions, the judgments are final following the Court of Appeal opinion and remittitur and Plaintiff has not even attempted to make nonfrivolous argument that would allow this court to vacate the judgment or any prior ruling. Plaintiff's disagreement with the judgments and prior rulings is not a basis for setting them aside, and Plaintiff may not continue to relitigate the issues. It was Plaintiff's obligation to assert all arguments he had in the Court of Appeal. The court further finds Longspur complied with the requirements of section 128.7, including the 21-day safe harbor provision, and Plaintiff's motions were unwarranted, brought for improper purpose, and lacked legal and evidentiary support. Sanctions under the code are warranted. The court finds both the hourly rates and the number of hours requested for opposing Plaintiff's two motions and bringing this motion to be reasonable and appropriate. Based on the foregoing, the motion is **GRANTED** and Longspur is awarded the requested amount of $2,666.07 in attorney fees and costs against Plaintiff. Longspur's counsel is ordered to give notice of this ruling.

11.	***Legacy Medical Consultants, LP vs. Jim Seraj*** *2025-01530373*	Before the court is the continued hearing on the motion of defendant and judgment debtor Jim Seraj dba Illuminary Medical Group (Defendant) to vacate judgment entered on sister state judgment, or in the alternative, stay enforcement pending proceedings to set aside sister state judgment. The court originally heard the motion on May 7, 2026. Prior to that hearing, the court posted a tentative ruling to grant the motion as to the request for a stay of enforcement of the judgment pending resolution of a challenge to the underlying judgment in Texas. At the hearing, the parties reported they have reached a settlement of this matter and submitted a stipulation to continue the hearing on the motion to today's date. The court accepted that stipulation and continued the hearing to today. The parties have not filed any further documents since the last hearing. Accordingly, the parties are ordered to appear and update the court regarding the status of the settlement and this motion.
12.	***Trosper vs. Enloe*** *2019-01086297*	Before the court is the motion of defendants Breton Dirk Enloe, Laurel Enloe, Brady Enloe, Sesma Cleaners, Inc., and Rocio Roman (collectively, Defendants) to set aside the judgment entered on November 4, 2025 (ROA 170) following an unopposed trial in this matter. As more fully set forth below, the motion is **GRANTED**. Code of Civil Procedure section 473(b) states, "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." As a general rule, an attorney's inexcusable neglect is chargeable to the client. (*Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 895.) There, however, is an exception to this rule: "'[E]xcepted from the rule are those instances where the attorney's neglect is of that extreme degree amounting to positive misconduct, and the person seeking relief is relatively free from negligence. [Citations omitted.] The exception is premised upon the concept the attorney's conduct, in effect, obliterates the existence of the attorney-client relationship, and for this reason his negligence should not be imputed to the client.' [Citations.]" (*Id*. at p. 898.) The exception is narrowly applied. (*Id*. at p. 900.) "Despite the general rule which imputes the attorney's neglect to the client, there are exceptional cases in which the client, relatively free from

personal neglect, will be relieved of a default or dismissal attributable to the inaction or procrastination of his counsel. [Citations.]" (*Daley v. Butte County* (1964) 227 Cal.App.2d 380, 391.) "An attorney's authority to bind his client does not permit him to impair or destroy the client's cause of action." (*Ibid*.)

Even where the lawyer's conduct amounts to abandonment, the court must consider other equitable factors, including the following: (a) client's own conduct; (b) prejudice to defendant;(c) whether the dismissal was mandatory or discretionary; (d) policy favoring a trial on the merits; (e) policy favoring finality of judgments; (f) policy disfavoring unreasonable delays in litigation; (g)policy that innocent clients should not have to suffer from their attorneys' gross negligence; and (h) policy that grossly incompetent attorneys should not be relieved from the consequences of their incompetence. (*Seacall Develop., Ltd. v. Santa Monica Rent Control Bd.* (1999) 73 Cal.App.4th 201, 205.) Positive misconduct by a party's lawyer also may provide an equitable basis for relief from a judgment apart from section 473, subdivision (b), in appropriate cases. (See, e.g., *Aldrich v. San Fernando Valley Lumber Co., Inc.* (1985) 170 Cal.App.3d 725, 739.)

Here, the foregoing factors weigh in favor of granting Defendants relief. Defendants were represented by Benjamin Hampton from the inception of the litigation, through two demurrers and multiple stipulations to continue trial. Defendants submit evidence showing that leading up to the October 28, 2024 trial, the defendants had done everything requested by counsel to prepare for the coming trial date and were prepared to go forward. This, however, apparently was the beginning of a series of misrepresentations by Mr. Hampton regarding case handling. It is clear from Laurel Enloe's declaration, as well as the series of text messages attached thereto, at the same time as Mr. Hampton was submitting a stipulation to the court requesting a trial continuance based on his own schedule conflict, he was simultaneously telling the clients that court congestion was causing a brief delay. Based on the text messages, it appears Mr. Hampton did not have his client's permission to enter into the stipulation which resulted in the trial being continued to September 15, 2025. In fact, long after the order continuing the trial was entered, Laurel Enloe continued to seek information about the case and it is apparent she continued to remain deceived by Mr. Hampton's representation that "everything is under control."

		Defendants were diligent in preparing for trial and trying to follow up with Mr. Hampton, but he did not keep them informed or finish preparing them for trial. Defendants also were diligent in pursuing this motion, filing it approximately one month after entry of judgment. Plaintiff points to prejudice as a factor to be considered, but Plaintiff does not identify any specific prejudice she would suffer or provide any evidence of prejudice. The only potential prejudice is the delay that will result and the expense of the one-day trial, but Plaintiff presents no evidence or argument to show that rises to the level of substantial prejudice sufficient to justify denying this motion. Accordingly, based on the court's balancing of the foregoing factors, the court finds they weigh in favor of granting Defendants relief, and therefore the motion is **GRANTED**. At the hearing, the court will assign this matter to a new judicial officer (the previously assigned judicial officer, Judge Larsh, has retired), and schedule a trial setting conference. Defendants' counsel is ordered to give notice of this ruling.
13.	***DMC Charter Service, LLC vs. Namdar*** *2024-01399364*	On calendar is the continued hearing on the order to show cause and affidavit for contempt the court first signed and issued on January 5, 2026, ordering defendant and judgment debtor Bjian Namdar (Debtor) to appear in court and show cause why he should not be held in contempt of court for willfully failing to comply with the court's order. Specifically, the order to show cause was issued on the application of plaintiffs and judgment creditors DMC Charter Service, LLC and DeMarre Carroll (collectively, Creditors) based on Debtor's alleged willful failure to comply with the court's May 15, 2025 order for Debtor to respond to Creditors' request for production of documents and to produce all responsive documents. This matter was last on calendar on May 14, 2026. A few days before that hearing, Creditors filed a proof of service showing they had personally served Debtor with the order to show cause and all supporting documents. Debtor, however, did not appear for the May 14 hearing. Accordingly, the court continued the hearing to today's date with an admonition and caution to Debtor that they proceeding may proceed in his absence or a bench warrant may be issued for his arrest if he failed to appear today. Creditors submitted a new order to show cause with today's date that the court signed on June 10, 2026. Since the last hearing, the court has not received any proof of service or

		other evidence showing Debtor was served with the new order to show cause or any other form of notice of today's hearing. The parties are ordered to appear for the hearing to discuss how to proceed with this matter.
14.	***Brimm vs. Mobilitas Insurance Company*** *2026-01565804*	Before the court are the hearings on the following motions filed by Mobilitas Insurance Company (Mobilitas): (1) the continued hearing on the motion to compel Kyle Brimm (Brimm) to respond to request for production of documents, set one, and request for monetary sanctions, (2) the initial hearing on the motion to compel Brimm to respond to special interrogatories, set one, and request for sanctions, and (3) the initial hearing on the motion to compel Brimm to respond to form interrogatories, set one, and request for sanctions. The original hearing on the motion to compel responses to the document requests was set for June 25, 2025. Prior to the hearing, the court posted the following tentative ruling, to which Mobilitas submitted: "Before the court is the motion of Mobilitas Insurance Company (Mobilitas) to compel [K]yle Brimm (Brimm) to respond to requests for production of documents, set one, and request for monetary sanctions. As set forth below, the motion is **CONTINUED TO THURSDAY, JULY 9, 2026, AT 2:00 P.M., IN DEPARTMENT C23**, for Mobilitas to demonstrate this court has jurisdiction over Brimm and that this court is the proper court for these proceedings. "This case is an uninsured or underinsured motorist case filed pursuant to Insurance Code section 11580.2, subdivision (f), to obtain a case number for purposes of having the court resolve any discovery disputes that may arise between the parties or otherwise make any other appropriate orders in aid of the arbitration between the parties. By the current motion, Mobilitas seeks an order compelling Brimm to respond to document requests Mobilitas propounded. "Mobilitas, however, has failed to establish this court is the proper venue for these proceedings. Section 11580.2, subdivision (f), provides the superior court having jurisdiction over uninsured motorist proceedings such as this is the superior court (a) in the proper county for the filing of a lawsuit against the uninsured motorist for bodily injury arising from the accident or (b) in any county specified in the policy as a proper county for arbitration or

		action on the policy. (See Ins. Code, § 11580.2(f)(1), (2).) Here, the petition states the underlying accident occurred in San Francisco. Nothing is presented to show this court is the proper court for these proceedings. The court will need a declaration or other evidence showing this court is the court having jurisdiction over these proceedings. "Similarly, it is unclear this court has personal jurisdiction over Brimm sufficient to allow it to make the requested order directing Brimm to take certain actions. The court's file shows the petition initiating these proceedings and this motion were electronically served on an attorney (Eric R. Gruber) on Brimm's behalf. Typically, personal service of a case initiating document on the defendant or respondent is necessary to confer jurisdiction over the defendant or respondent. The court acknowledges service on counsel may be sufficient in proceedings such as these. (See *Miranda v. 21st Century Ins. Co.* (2004) 117 Cal.App.4th 913, 927-928.) Mobilitas, however, has not presented sufficient evidence to show Miranda applies in this case so as to provide the court with jurisdiction to make the requested order. Mobilitas should submit a declaration or other evidence showing this court has jurisdiction over Brimm. "Any supplemental declarations or other filings addressing these issues must be filed and served by **<u>July 1, 2026</u>**. "Based on the foregoing, the motion is **CONTINUED** as set forth above." On June 26, 2026, Mobilitas filed a notice of non-opposition to the court's inquire regarding venue and request for transfer of proceedings to San Mateo County Superior Court. This notice states Mobilitas agrees this court is not the proper venue for these proceedings and that the matter should be transferred to San Mateo County were the accident occurred and the lawsuit between the drivers is pending. Based on the additional information provided and the agreement of Mobilitas, the court finds San Mateo County is the appropriate venue for this case and the court **ORDERS THIS CASE TRANSFERRED** to San Mateo County. Mobilitas is responsible for payment of the fees and costs associated with the transfer. (Code Civ. Proc., § 399(a).) Mobilitas is ordered to pay transfer fees and costs within 5 days. The fees include not only the transfer fee payable to this court, but also a check made payable to the San

		Mateo County Superior Court for the first appearance fee in that court. Mobilitas may contact the clerk's office for the appropriate amount of each fee. Within 10 days of this hearing, Mobilitas is ordered to submit a proposed order for the court's signature. The order must contain at least the following: (1) the court orders this matter be transferred to the Superior Court of California for San Mateo County, upon payment of all the necessary fees required by law; (2) the basis of the transfer is because San Mateo County is the proper county for filing Kyle Brimm's uninsured motorist claim; (3) the clerk of this court is authorized to transfer all the pleadings and papers herein to the clerk of the receiving court; (4) the court, division, and address where the case is being transferred and (5) all currently pending motions to compel are vacated without prejudice to being reset in the transferee court. Finally, the court sets an order to show case re dismissal of this action for failure to timely effectuate transfer for **Monday, August 31, 2026, at 9:30 a.m., in Department C23**. This hearing to confirm Mobilitas has taken all steps necessary to effectuate the transfer. If there is no appearance at the hearing and the transfer has not been completed, this case may be dismissed without any further notice to the parties. Mobilitas is ordered to give notice of this ruling.
15.	***Wilson vs. Oscar Health Plan of California*** *2022-01298798*	Before the court are the following two motions to tax costs: (1) the motion of plaintiff John Wilson (Wilson) to tax the Memorandum of Costs filed by defendant Oscar Health Plan of California (Oscar), and (2) Oscar's motion to tax Plaintiff's Memorandum of Costs. As more fully set forth below, both motions are **GRANTED IN PART** and **DENIED IN PART**. **<u>Motion No. 1: Wilson's Motion to Tax Oscar's Costs</u>** "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (*Ladas v. California State Automobile Association* (1993) 19 Cal.App.4th 761, 774.) "There is no requirement that copies of bills, invoices, statements, or any other such documents be attached to the memorandum. Only if the costs have been put in issue via a motion to tax costs must supporting documentation be submitted." (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.) If the party seeking to tax costs makes a proper objection to an item in the cost bill, the burden then shifts back to the

		party claiming them as costs. (*Acosta v. SI Corp.* (2005) 129 Cal.App.4th 1370, 1380.) The propriety of costs is a question of fact to be determined by the trial court. (*Jones*, *supra*, 63 Cal.App.4th at p. 1266.) *<u>Pre-Section 998 Offer Costs</u>:* The parties agree Oscar made a Code of Civil Procedure section 998 settlement offer of $1,000,001 to Wilson on April 2, 2025, Wilson did not accept that offer, and a verdict was returned in Wilson's favor for $50. Accordingly, Wilson did not beat the offer and therefore Oscar is entitled to recover all costs and fees authorized by section 998, which includes Oscar's postoffer court costs and reasonable postoffer expert witness fees incurred in preparing for and during trial (in the discretion of the court). The invoices Oscar submitted show Dr. Jackson's deposition was taken on April 16, 2025. Therefore, the motion is **DENIED** as to Dr. Jackson's deposition cost because it is a post-offer cost. Exhibits B & C are invoices for deposition charges relating to the deposition of Drs. Hashmi and Vora, both of which are pre-offer costs. Accordingly, the motion is **GRANTED** as to those two cost items in the amount of $1,195. *<u>Costs Identified In Section B of Motion</u>:* In Section B of Wilson's motion, he seeks to tax the following costs which are part of Items 9 and 15 on the Memorandum of Costs: (1) $50,000 for Decision Analysis; (2) $26,165.31 for trial transcripts not ordered by the court; (3) $75.00 for shipping trial materials; and (4) $27.54 for court file copies. Oscar concedes these costs are not statutorily recoverable. (Opp. at 2:26.) Further, there are no invoices submitted explaining the details of these charges. Accordingly, the motion is **GRANTED** in the amount of $76,267.85 as to these times. *<u>Deposition of Heidi Fischer, MD - $760.50</u>:* Wilson seeks to tax the charges for the deposition of Dr. Fisher because she did not testify at trial. The statute does not require a person to testify for the costs of their deposition to be a recoverable cost item. Therefore, the motion is **DENIED** as to this item. *<u>Conference Room Charges - $540</u>:* There are two charges for $270 each under Item 15 – Other which are described only as "conference room." There are no separate invoices supporting these charges. There is no evidence as to how

		these are a recoverable cost. Accordingly, the motion is GRANTED as to these items in the amount of $540. *Audio Exhibits -$1,966.91:* Under Item 13-Models, Enlargements and Photocopies of Exhibits, Oscar lists charges of $1,261.14 and $705.77 for "Audio Exhibit Transcript Preparation." Oscar has attached the invoices as Exhibit L in support of the opposition. Oscar explains these were charges for transcribing recordings as required by Rule 2.1040. These are allowable costs as necessary for trial. Accordingly, the motion is **DENIED** as to these items. *Trial Technician - $10,226.86:* Under Item 15-Other, Oscar has four entries for "Trial Technician-Dayna S. Davis" which total $10,226.86. There are no invoices submitted which show the work performed by Dayna S. Davis. Mr. Foster's declaration does not describe Davis's experience, qualifications, or expertise and does not discuss the specific charges. Code of Civil Procedure section 1033.5, subdivision (c)(2), states, "allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." Without the invoices or further explanation, it is not possible to determine whether the charges were necessary rather than merely convenient. Accordingly, the motion is **GRANTED** as to this item in the amount of $10,226.86. *Oscar's Post-Offer Expert Charges:* Code of Civil Procedure Section 998, subdivision (c)(1), states, "If an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover their postoffer costs and shall pay the defendant's costs from the time of the offer. In addition, in any action or proceeding other than an eminent domain action, the court or arbitrator, in its discretion, may require the plaintiff to pay a reasonable sum to cover postoffer costs of the services of expert witnesses, who are not regular employees of any party, actually incurred and reasonably necessary in either, or both, preparation for trial or arbitration, or during trial or arbitration, of the case by the defendant." In exercising its discretion to allow expert fees, the court should consider if the expert witness fees are reasonable. (*Rouland v. Pacific Specialty Insurance Company* (2013) 220 Cal.App.4th 280, 289.) It is not required that the expert take the stand or be deposed to allow the recovery. The time the expert spends in preparation for trial is allowable. (*Michelson v. Camp* (1999) 72 Cal.App.4th 955,

974-976; *Santantonio v. Westinghouse Broadcasting Co.* (1994) 25 Cal.App.4th 102, 123.)

In the motion, Wilson challenges the charges of Dr. Heidi Fischer, Dr. Nitin Bhatia, and Dr. Peter Cassini as being unreasonable and unnecessary. The court has reviewed the invoices submitted at Exhibit N (Bhatia), Exhibit Q (Cassini) and Exhibit T (Fischer). The court finds, although the charges are high, they were not beyond what might have been anticipated in an expert intensive case such as this. Accordingly, the motion is **DENIED** as to expert charges and the total expert charges allowed under Item 8 is the $98,625.35 requested.

Finally, the court has considered Wilson's request for an overall reduction of expert fees and costs based on his claim of limited financial resources. Wilson has provided a conclusory declaration regarding his income and monthly expenses, but has not provided any other information about his financial condition, such as any savings or other assets. The court also finds this is not a case in which Oscar sought to force Wilson to accept an unreasonable settlement offer based on his financial circumstances. The court finds the offer of approximately $1 million is reasonable offer, not a token or bad faith offer made for any inappropriate reason. Indeed, Wilson does not contend that it was. Based on the totality of the circumstances, Wilson's request for the court to exercise its discretion to reduce the fees and costs based on his financial circumstances is **DENIED**.

In total, the motion is **GRANTED** as to the total of $88,229.71 described above. The motion is **DENIED** as to all other amounts. That leaves a total costs award to Oscar of $115,376.12.

Motion No. 2: Oscar's Motion to Tax Wilson's Costs

Post Section 998 Offer Costs: Wilson concedes several costs are post offer and properly taxed. (Opp. at 2:4-5.) Wilson, however, argues one charge for a copy of Dr. Jackson's deposition in the amount of $257.95 should be considered pre-offer because the deposition was taken before the offer even though the copy was purchased after the Section 998 offer. The court disagrees. Accordingly, the motion is **GRANTED** as to the post-offer costs in the amount of $7,709.49.

Charges for Serving Subpoenas: The cost for serving subpoenas is a recoverable cost. Although Oscar argues Wilson should not have served a subpoena for records on it when a request for production would have sufficed, there is no prohibition on using a subpoena to obtain records from a party. Further, while the charge for serving Dr. Hoedebecke with a subpoena in Texas was high, it is supported by invoices showing the reasonableness of the charges. Wilson, however, concedes the charges referenced at page 7, lines 18-23 of the motion should be taxed. Accordingly, the motion is **PARTIALLY GRANTED** as to these costs in the amount of $730.25.

Vague and Ambiguous Charges: Oscar seeks to tax the following items because they are not adequately described:

1. Steno Invoice 1646325 Hearing: $35.00;
2. One Legal Accounting Filing a Notice of Entry of Order: $15.65;
3. One Legal Order Number 20931952: $13.33;
4. One Legal Filing Fee Order number 20810884: $15.65;
5. Greenfiling to take Deposition Outside California: $58.62;
6. Check – Don Green Filing ID 12030393: $14.27;
7. OC E-File 12067413: $14.27;
8. OC E-File 12017676: $14.27;
9. $455.18 for filing the Complaint;
10. Filing fee for Opposition to Petition to Compel Arbitration: $16.64;
11. Serve Oscar Health Plan of California served @330 N Brand Blvd Ste 700 Glendale, CA, 91203-2336 on 1/4/2023 at 12:09 PM: $99.15;
12. Notice of Ruling on Defendant Oscar Health Plan of California's Petition for an Order Compelling Arbitration and Staying Superior Court Action: $16.64; and
13. Orange County Superior Court Purchase of Minute Order: $7.50.

In the opposition, Wilson concedes no. 13 should be stricken. (Opp at 9:16-17.) In the reply, Oscar withdraws its challenge to nos. 6 and 8-12. (Reply at pages 5-6.) Oscar argues number one ($35 charge on Exh. P) is for a copy of the transcript from a hearing that took place on November 7, 2024, but which was ordered after April 2, 2025. This post-offer cost will be taxed. Charges numbers three and four are supported by invoices at Exhibits M and N and are reasonable. The remainder of the charges are not reflected in the attached invoices and are therefore taxed. In total, the Court will tax all but items three and four which makes the total amount taxed $292.01 as to which the motion is **GRANTED**.

In total, the motion is **GRANTED IN PART** as to $8,731.75 of the $35,815.64 stated in Wilson's Memorandum of Costs.

		The motion is **DENIED** as to the balance of the challenged costs. That leaves a total costs award to Oscar in the amount of $27,083.89. Oscar's counsel is ordered to give notice of these rulings.
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17.		
18.		
19.		
20.		